

Court No. - 4

Case :- WRIT - C No. - 7104 of 2018

Petitioner :- Ramashrey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Yashwant Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Bala Krishna Narayana,J.

Hon'ble Irshad Ali,J.

Heard learned counsel for the petitioner, learned Standing counsel and Sri Mahboob Ali, learned counsel appearing for respondent nos. 2, 3 and 4.

This writ petition has been filed by the petitioner Ramashrey with prayer to quash the impugned order dated 29.8.2017 (Annexure-11 to the writ petition) passed by Civil Judge Senior Division/F.T.C., Azamgarh in Original Suit No. 154 of 2001 (Ramashrey Vs. U.P. State Power Corporation and other) by which the Civil Court has held that the suit filed by the petitioner challenging the correctness of electricity bill was not maintainable and dismissed the suit as well as order dated 3.11.2017 (Annexure-12 to the writ petition) passed by Consumer Forum, Azamgarh by which a complaint filed by the petitioner for correction of the some electricity bill was also rejected as not maintainable. Further prayer has been made by the petitioner for issuing a writ order or direction in the nature of mandamus directing the respondent no. 2 to provide the correct electricity bill on the basis of actual meter reading from 5.5.1998 to 20.9.2000 after deducting Rs. 34,612/- already deposited by the petitioner and to decide the objection filed by the petitioner before the respondent no. 2 on 13.2.2018 under clause 6.5 of the Electricity Supply Code 2005 within some specific period.

Having heard the learned counsel for the parties present and perused the impugned order dated 29.8.2017 and 3.11.2017, we do not find any reason to quash the same. However, we **dispose of** the writ petition with direction to the respondent no. 2 to decide the objection filed by the petitioner before him under clause 6.5 of the Electricity Supply Code 2005 on 13.2.2018, copy whereof has been brought on record as Annexure-13 of the writ petition as expeditiously as possible preferably within a period of six weeks from the date of production of certified copy of this order.

Order Date :- 28.2.2018

Manoj